

**PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.**

**\*\*at 9:30 a.m.\*\***

**Estate of Adele Ann Casten**

**25PR000290**

[1] PETITION HEARING FOR INSTRUCTIONS REGARDING THE VALIDITY OF ADELE CASTEN’S APRIL 19, 2019 AND MAY 3, 2019 WILLS

**TENTATIVE RULING:** The matter is CONTINUED to October 15, 2026, at 9:30 a.m. in Dept. A. Objector James Casten is directed to serve, at least 15 days before the continued hearing date, the two Declarations he filed with the Court on August 10, 2026, and the three Declarations he filed with the Court on August 25, 2026, on each of Petitioner Napa County Public Administrator (NCPA), Petitioner Claire Fahlstrom, and all interested persons identified in Section 8 of the Petition for Letters of Administration filed on December 5, 2025, by NCPA, and file proof of such service with the Court. The Clerk is directed to send this Minute Order and Notice of the continued hearing to all such persons.

**A. PROCEDURAL BACKGROUND**

The Napa County Public Administrator (NCPA) initiated this matter on December 5, 2025, by filing a Petition for Letters of Administration (Original Petition). The Original Petition alleged that decedent Adele Ann Casten (Decedent) died intestate. It further alleged the names and addresses of some 46 potentially interested persons. No objection or opposition to the Original Petition was timely filed. The Court granted the Original Petition on January 15, 2026, and issued Letters of Administration on January 16, 2026.

On May 19, 2026, copies of two documents, each purporting to be a last will and testament of Decedent, were filed in the action.<sup>1</sup> The first is dated April 19, 2019 (4/19 Will). The second is dated May 3, 2019 (5/3 Will).

On June 4, 2026, Claire Fahlstrom filed a Petition for Letters of Administration requesting that the 5/3 Will be admitted to probate and that Ms. Fahlstrom be appointed special administrator with general powers (Fahlstrom Probate Petition).

On June 16, 2026, NCPA filed an Amended Petition for Letters of Administration and Petition for Probate of Will alleging the existence of both the 4/19 Will and the 5/3 Will (NCPA Probate Petition). The NCPA Probate Petition came on, originally, for hearing on July 28, 2026. By Minute Order of that date, the Court granted Ms. Fahlstrom leave to file two witness statements. The Court continued the hearing to August 11, 2026.

On July 23, 2026, NCPA filed a Petition for Instructions seeking a determination as to whether either of the two Wills are valid and set the matter for hearing on August 11, 2026. On August 10, 2026, James Casten, a cousin of Decedent, filed a Declaration indicating his intent to dispute the validity of both Wills on grounds of lack of due execution and undue influence. The

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<sup>1</sup> It appears that the documents were filed by NCPG. (See Petition for Instructions filed July 23, 2026, at 2:5-6.)

Petition for Instructions came on for hearing on August 11, 2026. Mr. Casten, Ms. Fahlstrom, the NCPA, appeared as did other interested parties. Mr. Casten reasserted his objections to admitting the Wills, or either of them, to probate, and informed the Court that he had not received a copy of the Fahlstrom Petition.<sup>2</sup> The Court ordered that any evidence be filed by August 28, 2026, and continued the hearing on the Petition for Instructions to this date.

## B. DISCUSSION

In this action, no will has yet been admitted to probate. The Court finds that Mr. Casten's Declaration filed August 10, 2026, is sufficient to initiate a will contest. (See *Swift v. Super Ct. of San Francisco* (1952) 39 Cal.2d 358, 361 [rejecting argument that "'answers' to the petition for probate do not constitute a 'contest' of the will"].) Thus, in addition to the issue of whether one or both wills were the product of undue influence (raised by NCPA through the Petition for Instructions) the question of whether one or both wills were duly executed is now at issue in the litigation. "Preliminarily, we note the power to make a will is conferred solely by statute: 'The power to dispose of one's property by will and the mode by which it may be exercised are matters under legislative control, and the mode prescribed by the statute must be followed, or there is no will.' [Citation.] When due execution of a will is contested, the proponents of the will have the burden of proving it. [Citation.] Section 8253 specifies how execution may be proven: 'At the trial, each subscribing witness shall be produced and examined. If no subscribing witness is available as a witness within the meaning of Section 240 of the Evidence Code, the court may admit the evidence of other witnesses to prove the due execution of the will.'" (*Estate of Ben-Ali* (2013) 216 Cal.App.4th 1026, 1034.)

However, there is no proof, in the Court's file, that any of Mr. Casten's filings have been served on all the parties to the action and interested parties vis-à-vis the estate. Mr. Casten *has* filed proof of service of a Notice of Hearing on all persons. However, due process considerations require that all such persons also receive copies of all papers that Mr. Casten intends to rely on in supporting his position and arguments.

The matter is, therefore, CONTINUED, and Mr. Casten is ordered to serve the subject papers, and file a proof of service, all as specifically provided above.

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<sup>2</sup> As of August 11, 2026, there remained no proof of service of the Fahlstrom Petition.

- [2] NAPA COUNTY PUBLIC ADMINISTRATOR’S AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT
- [3] CLAIRE FAHLSTROM’S PETITION FOR PROBATE OF WILL AND FOR LETTERS OF SPECIAL ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

**TENTATIVE RULING:** The Court sets a Case Management Conference for both Petitions on October 15, 2026, at 9:30 a.m. in Dept. A. The Clerk is directed to send Notice to the parties and the interested parties.

**CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.**

**Mark Andrews v. Richard Rockwell et al**

**24CV000304**

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC’S MOTION TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

**TENTATIVE RULING:** The Anti-SLAPP motion is GRANTED. The Demurrer is therefore MOOT.

**A. PROCEDURAL MATTERS**

Defendant Enterprise Rent-A-Car Co. of San Francisco, LLC (“Enterprise”) moves, pursuant to Code of Civil Procedure section 425.16, subdivision (e)(1),<sup>3</sup> for an order striking all causes of action asserted against Enterprise in the Amended Complaint (“Amended Complaint”) filed by Plaintiff Mark Andrews (“Plaintiff”) on 12/3/2025 or, in the alternative, dismissing the Amended Complaint. If the Court declines to grant Enterprise’s anti-SLAPP motion, Enterprise demurs to all causes of action against Enterprise due to failure to state a claim upon which relief can be granted. (Notice, 3:4-7.)

The matter originally came on for hearing on July 9, 2026, July 22, 2026, and July 24, 2026. The July 9 hearing was continued by the Court. The July 22 hearing was continued based on the Court being informed of the parties’ stipulation to have the hearing coincide with Plaintiff’s *ex parte* application to allow for a continuance to conduct discovery. Prior to the July 24 hearing, the Court posted a Tentative Ruling granting Enterprise’s Anti-SLAPP motion and finding the Demurrer moot. At the July 24 hearing, the Court did not adopt its Tentative Ruling and, instead, granted Plaintiff’s *ex parte* application to continue the hearing on the present matter and to allow discovery on certain categories as specified in the Court’s July 24 Minute Order.

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<sup>3</sup> All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.